CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Special Commission Meeting
June 17, 2011
2:30 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Friday, June 17, 2011 at 2:35 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Gail E. Miller and Mayor Myra L. Taylor. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

2. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. RESOLUTIONS:

a. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO A CONTRACT WITH HYDRA SERVICES, INC., FOR AN AMOUNT NOT TO EXCEED $132,057.00, PAYABLE FROM ACCOUNT NUMBER 35-535630, FOR THE DIRECT PURCHASE OF PUMPS AND APPURTENANCES FOR THE REHABILITATION OF PUMP STATIONS 1 AND 2; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson recalled a meeting held with Commissioner Jordan in which it was mentioned that the city was not interested in ABS pumps and this is the same resolution

brought forth previously and nothing has been changed. At that time, she suggested that the city look at the flight pump.

Manager Patterson explained that the original design for pump stations 1 and 2 was ABS pumps not flight pumps.

Vice Mayor Johnson stated that she was unable to support the resolution. In addition, she asked, who designed pump stations 1 and 2?

Fritz Armand, Public Works Director for the City of Opa-locka came forward and explained that the pump stations were designed by the city's engineer Mohammed Nasir, P.E. The ABS pumps would be provided by Hydra Services, Inc. if the resolution is passed. The flight pumps were used on various projects in the city and they were designed to exact capacity with no room to grow. This manufacturer will provide a 5 year warranty versus a 1 year warranty provided by other manufacturers. In addition to that, ABS pumps are required by DERM anytime there are two stations diverting into each other. There would also be a back up system in case of power failure and a third diesel pump which would guarantee that this pump station would never go down. Not using ABS pumps will cause to completely redesign the station because the diesel pump itself requires its own electrical panel. The diesel generator would fit into the existing electrical panel.

Vice Mayor Johnson expressed her concerns relating to the flight pumps that the city had invested money to find out that there is no room to grow which would make them obsolete in several years.

Mr. Armand agreed with what Vice Mayor stated because there is no added capacity in those stations recently completely.

Vice Mayor Johnson said it was a waste of taxpayers money for staff to bring it forth because as the Commission they don't go out and look for this information. The Commission relies on what staff recommends. It's hard to believe that the city spent so much money on pumps to hear a new person state that those pumps are obsolete and that it transpired, but nobody knows anything.

After hearing from Commissioner Jordan and DERM at a previous meeting regarding the pump stations, Commissioner Holmes said he was in support of the resolution. In addition, he believed that this is the best solution for the city.

Vice Mayor Johnson expressed her concerns with staff recommendations to the Commission that is costing money over and over again. Based on the information, she said she would support the resolution.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Johnson Out of Room

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

b. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO NAME AN INTERIM CITY MANAGER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

Commissioner Miller requested that the City Attorney read Section 2-44 of the City of Opa-locka Charter.

Attorney Geller read Section 2-44 of the city charter: *"Special Meetings: a special meeting of the City Commission may be called either by a majority of the members of the Commission, in his absence the Vice Mayor, or City Manager. Whenever a special meeting is called, a notice in writing signed by the official or officials calling the meeting shall be served upon the City Clerk. The City Clerk shall within one hour thereafter give both a verbal and written notice upon each member of the Commission stating the date, hour and place of the meeting and purpose for which such meeting is called. No other business shall be transacted at the meeting. At least 24 hours must elapse between the time the City Clerk receives notice in writing of the call of the meeting and the time meeting is to be held."*

Commissioner Miller stated that it is her understanding that the Commission should be voting on those items on the agenda and the City Attorney shouldn't be bringing another resolution at a special meeting.

Attorney Geller explained that the resolution in its original form was submitted yesterday.

Commissioner Miller said she requested a resolution for the special meeting since Wednesday of that week, but she is now receiving a resolution prior to the meeting with a name already inserted in the resolution when the resolution in the agenda packet has a blank for a name to be inserted.

Attorney Geller advised that the Commission can only act on what is on the agenda; the item is to appoint an interim city manager. Whether it's blank or has a name in it, it is still to appoint an interim city manager and it is up to the discretion of the Commission.

Commissioner Miller said she was not in support of the resolution to appoint Bryan Finnie as Interim City Manager.

As stated in a previous meeting, Vice Mayor Johnson said she would not support any current city employee as Interim City Manager. She is not going to recommend anyone currently employed with the City of Opa-locka. However, she has a recommendation of an outside person.

Commissioner Tydus indicated that she received the City Manager's amended resignation letter late Thursday, June 16, 2011 and although this is something that has to be done due to the resignation being effective on that day, she really didn't have time to think about it. In addition to that, she asked, has the city advertised in any government publications?

Clerk Irby advised that the city advertised in the Miami Herald and Sun Sentinel. In addition, the ad was posted on Career Builder, OPA-TV and the city's website.

Commissioner Tydus asked, was a deadline date included in the ad for receiving resumes?

Clerk Irby replied that the deadline for submittal is June 24, 2011.

In addition to the resolution appointing an Interim City Manager, Commissioner Tydus suggested that the Commission provide a time certain as to when they are going to meet to review the resumes and set a date for the selection to be made.

Because the city was still accepting resumes for the City Manager position, Mayor Taylor suggested that the Commission deal with one item at a time and she could not give a time certain until after the deadline for submittal. She said she would poll the Commission after the deadline to find out how they would make the next move. For right now, the city just needs an interim city manager for the next three months to finish out the year. The new City Manager would come in with the new budget.

Commissioner Tydus asked, is the Commission going to consider the resumes received previously?

Mayor Taylor said that would be up to the Commission if they want those names and resumes, provided that the City Clerk saved them, to be placed with the new resumes coming in for City Manager.

Of concern to Commissioner Holmes was that the Commission was not focusing on the agenda items because all they need to be doing at that point is appointing an interim city manager. After receiving resumes for the City Manager position, the Commission will review those and decide then, but right now they should just be dealing with the agenda items in front of them.

Commissioner Tydus said that her questioning in part was due to the last phrase in Section 2 of the resolution which reads: *"or until the appointment of his successor as*

City Manager, whichever comes first". How could the Commission determine whichever comes first if no date has been established and that was the reasoning for her questioning.

Vice Mayor Johnson suggested that the Commission proceed with the resolution in the packet and fill in the blank as needed. She explained that whichever comes first in the resolution to her means that if the Commission completes the selection process for City Manager prior to September 30, 2011 then they can proceed with an appointment. She suggested that the Commission wait until after the submittal deadline so that they can receive all resumes and go from there.

Commissioner Miller recommended David Chiverton as Interim City Manager to avoid from having to get an outside person and paying additional salary when they can appoint somebody already on the city's payroll to assist with the city's financial situation.

It was moved by Commissioner Miller to appoint David Chiverton as Interim City Manager; motion died for lack of a seconded.

Vice Mayor Johnson made a motion for John Riley to be considered as Interim City Manager.

It was moved by Vice Mayor Johnson to appoint John Riley as Interim City Manager; motion died for lack of a seconded.

Commissioner Holmes recommended Bryan Finnie to serve as Interim City Manager until the end of September.

It was moved by Commissioner Holmes, (Mayor Taylor passed the gavel to Vice Mayor Johnson) seconded by Mayor Taylor to appoint Bryan Finnie as Interim City Manager.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Out of room
Commissioner Holmes	Yes
Mayor Taylor	Yes

Mayor Taylor suggested that Vice Mayor Johnson work on a written policy on how the Commission is going to choose a City Manager and have it available for them by June 24, 2011.

She continued by saying that the Commission did not pass the budget amendment in a timely fashion on previous meeting. Since it is coming up on first reading at the June 22, 2011, she said she has to have a special meeting immediately after that to pass the budget amendment because it has to be in Tallahassee on or before July 1, 2011.

5. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to adjourn the meeting at 3:11 p.m.

MAYOR

ATTEST:

CITY CLERK